

Vishal Singh Batra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 March 2026 · Writ-C No. 17582 of 2014 · **Writ dismissed as infructuous; interim vacated; liberty under cl. 6.8.**

HEADNOTE

A 2014 writ, called in the revised list with none appearing for the petitioner, was dismissed as infructuous by efflux of time. The Court recorded that cl. 6.8 of the U.P. Electricity Supply Code, 2005 is an efficacious remedy, vacated any interim order, and granted liberty to press relief under that clause if the matter survives.

FACTUAL SUMMARY

Vishal Singh Batra filed Writ-C No. 17582 of 2014 against the State of Uttar Pradesh and three others. When the Division Bench took the petition in the revised list on 13 March 2026, none appeared for the petitioner and no adjournment slip was filed. The Additional Chief Standing Counsel for the State-respondents and counsel for respondent no. 3 were present. Counsel for the contesting respondent submitted that the petitioner had an efficacious remedy under clause 6.8 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Alternative remedy — liberty to press cl. 6.8 after infructuous writ

HOLDING

On non-appearance of the petitioner the writ was dismissed as infructuous by efflux of time and any interim order was vacated. Without examining the merits, the Court recorded that cl. 6.8 of the Supply Code is an efficacious remedy and granted liberty to press relief under that clause if the petitioner feels the matter survives. ¶ 2-5

PRINCIPLE TAGS

opportunity-before-final-assessment

A 2014 writ, called in the revised list with none appearing for the petitioner, was dismissed as infructuous by efflux of time. The Court recorded that cl. 6.8 of the U.P.. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE WRIT AND WHETHER THE CAUSE OF ACTION STILL SURVIVES

Dismissed as infructuous without adjudication; liberty under cl. 6.8 if the petitioner considers the matter survives. ¶ 3-5